

Sushama Mukesh Pawar vs Mukesh Sharad Pawar on 30 September, 2016

Author: Sunil P. Deshmukh

Bench: Sunil P. Deshmukh

M.C.A.14/2016

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IN THE HIGH COURT OF JUDICATURE AT BOMBAY,
BENCH AT AURANGABAD

MISCELLANEOUS CIVIL APPLICATION NO.14 OF 2016

Sushma Mukhesh Pawar .

Age 34 years, Occu. Household,
R/o 7384, Iwale Lane, Maliwada,
Ahmednagar

..Applicant

Versus

Mukesh Sharad Pawar,
Age 36 years, Occu. Service
R/o Flat No.403 residency hights,
4th Floor Opp. Lathi Hospital

Ashram road, Uruli Kanchan
Taluka Haweli, District Pune

..Respondent

Mr M.K. Bhosle, Advocate h/f Mr P.V. Barde, Advocate for applicant

CORAM : SUNIL P. DESHMUKH, J.

DATE : 30th September 2016

ORAL JUDGMENT

1. Rule. Rule made returnable forthwith. Heard the learned counsel finally.
2. Respondent absent though served.
3. After hearing the learned counsel for applicant, it appears, from the wedlock, a daughter is born and now residing with the applicant.

After having driven out from the matrimonial house, the applicant is staying with her parents at Ahmednagar and there is no source of income for livelihood, which constrained her to file proceedings under Section 125 of Code of Criminal Procedure at Ahmednagar. Notice of said proceedings had been duly served on the respondent and he is attending those proceedings.

4. Subsequently, the respondent - husband has lodged proceedings in the Family Court at Pune bearing Hindu Marriage Petition No. 368 of 2015, under Section 9 of the Hindu Marriage Act, 1955 seeking restitution of conjugal rights.

5. Learned counsel submits that the economic as well as other constraints and conditions of the applicant do not afford her to leave Ahmednagar for attending the proceedings at Pune and since respondent is attending the proceedings by wife at Ahmednagar, it would be pertinent to have the proceedings filed by husband at Pune transferred to Ahmednagar.

6. In the absence of resistance, showing tacit consent, I deem it appropriate to consider the request made by the applicant.

7. Miscellaneous Civil Application, as such, stands allowed in terms of prayer clause (A) and is disposed of.

8. Rule made absolute accordingly.

SUNIL P. DESHMUKH, JUDGE vvr